

		This action is STAYED pending completion of arbitration. (Code Civ. Proc., § 1281.4.) <i>The Order to Show Cause re: Dismissal set September 18, 2026 at 8:30 a.m. is vacated.</i> <i>An Alternative Dispute Resolution (ADR) Review hearing is scheduled for February 26, 2027 at 8:30 a.m. in Department C44.</i> Defendants shall give notice.
8	Nationwide Insurance Company vs. Cal-Coast Packing & Crating, Inc. 2025-01501912	Motion for Determination of Good Faith Settlement Defendant Hutchinson Logistics & Consulting, LLC’s Motion for Determination of Good Faith Settlement is GRANTED. Defendant Hutchinson Logistics & Consulting LLC seeks an order finding the settlement between itself and Plaintiff Nationwide to be in good faith. California Civil Procedure Code § 877.6, subdivision (a)(1) provides that any party to an action in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors or co-obligors, upon giving notice in the manner provided in subdivision (b) of Section 1005. California Civil Procedure Code § 877.6, subdivision (a)(2) states that a settling party may give notice of settlement to all parties and to the court, together with an application for determination of good faith settlement and a proposed order. A nonsettling party may file a notice of motion to contest the good faith of the settlement. (<i>Id.</i>) The issue of the good faith of a settlement may be determined by the court on the basis of affidavits served with the notice of hearing and any counter affidavits filed in response. (Code Civ. Proc., § 877.6, subd. (b).) A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault. (Code Civ. Proc., § 877.6, subd. (c).) The purpose of the court’s review of a settlement for good faith is to determine whether the settlement prejudices the interests of nonsettling tortfeasors. (<i>Tech-Bilt, Inc. v. Woodward-Clyde &</i>

		<i>Assocs.</i> (1985) 38 Cal.3d 488, 494 n.4.) The court considers a number of factors in evaluating a settlement for good faith: • A “rough approximation” of the plaintiffs’ total recovery and the settlor’s proportionate liability; • The amount paid in settlement; • A recognition that a settlor should pay less in settlement than the settlor would pay if found liable after a trial. • The allocation of the settlement proceeds among plaintiffs; • The financial conditions and insurance policy limits of the settling defendants; and • Evidence of collusion, fraud or tortious conduct aimed to injure the interests of nonsettling defendants. The most important factor is the settling party’s proportionate liability. (<i>Mattco Forge, Inc. v. Arthur Young & Co.</i> (1995) 38 Cal. App. 4th 1337, 1350.) A court must consider not only the settlor’s potential liability to the plaintiff, but also its proportionate share of culpability as among all parties alleged to be liable for the same injury. (<i>TSI Seismic Tenant Space, Inc. v. Superior Court</i> (2007) 149 Cal. App. 4th 159, 166.) Because a good faith determination bars indemnity claims by non-settling parties, the true value of the settlement to the settlor may not be the amount paid to the plaintiff, but rather the value of the shield against such indemnity claims. (<i>Id.</i> at 166-67; see also <i>Far West Fin. Corp. v. D & S Co.</i> (1988) 46 Cal.3d 796, 816, fn. 16 [“Another key factor is the settling tortfeasor’s potential liability for indemnity to joint tortfeasors.”].) “The party asserting the lack of good faith, who has the burden of proof on that issue (§ 877.6, subd. (d)), should be permitted to demonstrate, if he can, that the settlement is so far ‘out of the ballpark’ in relation to these factors as to be inconsistent with the equitable objectives of the statute. Such a demonstration would establish that the proposed settlement was not a ‘settlement made in good faith’ within the terms of section 877.6.” (<i>Tech-Bilt</i>, supra, 38 Cal.3d at pp. 499–500.) The trial court’s section 877.6 determination “should be made on the basis of experience rather than speculation.” (<i>Id.</i> at 500.) “ ‘When testing the good faith of a settlement figure, a court may enlist the guidance of the judge’s personal experience and of experts in the field.’ ” (<i>Ibid.</i>) “[A] determination as to whether a settlement is in good faith must be left to the discretion of the trial court.” (<i>Id.</i> at 502.) Here, Defendant Hutchinson Logistics & Consulting, LLC
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	seeks a determination that a settlement with Plaintiff of a dismissal with prejudice in exchange for HLC waiving its costs, attorney's fees, and expenses, is in good faith. Defendant Cal Coast Packing & Crating, Inc. has filed a motion to contest the finding of a good faith settlement. 1. Rough Approximation of Liability/Settlor's Proportionate Liability and Settlement Amount This subrogation action arises out of alleged damages sustained to a Boom Supersonic aviation component ("Subject Property") while being transported in November 2022 by Plaintiff Nationwide Insurance Company's ("Plaintiff" or "Nationwide") insured, Harrison Farms Trucking, LLC ("Harrison"), from Irvine, California to Centennial, Colorado. Hutchinson Logistics & Consulting, LLC ("HLC") acted as a freight broker, and entered into a Broker/Carrier Agreement with Harrison so that HLC could arrange for the transportation of the Subject Property. Pursuant to the Broker/Carrier Agreement between HLC and Harrison, HLC's responsibilities were limited to arranging for the transportation of a shipper's freight with [Harrison], and not actually performing the transportation, services, possessing the freight, or controlling the means or methods of the transportation." Harrison also agreed to "indemnify and hold harmless [HLC] for any cargo loss or damage, or for delay in the delivery of a shipper's freight, or for any actual or consequential damages resulting therefrom." Plaintiff's damages in this case are no more than \$95,000. The value of HLC's waiver of costs, attorney's fees and expenses is no less than approximately \$9,801.11. When determining good faith based on "proportionate share" of liability, courts examine whether the settlement is grossly disproportionate to what a reasonable person at the time of the settlement would estimate the settlor's liability to be. (<i>City of Grand Terrace v. Superior Court</i> (1987) 192 Cal.App.3d 1251, 1262.) HLC contends it was the broker who contracted with Harrison to transport the Subject Property. HLC was not involved with packing, loading, and securing the Subject Property. Therefore, HLC's actions could not have caused or contributed to the damage
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	sustained to the Subject Property. Moreover, Harrison is obligated to defend and indemnify HLC from any claims involving the Subject Property. Thus, HLC’s liability with respect to Plaintiff’s claim is zero. In opposition, Cal Coast disputes that HLC had no involvement in the packaging, loading or physical transportation of the Subject Property. As evidence of this, Cal Coast submits emails between it and HLC regarding the shipping of the Subject Property wherein HLC discusses the shrink wrapping of the Subject Property. Cal Coast contends its only obligation was to shrink wrap the shipment subject to HLC’s term. Cal Coast had no contract or direction from either the owner of the Subject Property or the transportation company that actually shipped the Subject Property. Thus, HLC’s proposed settlement that HLC pay nothing is not within the ballpark of the HLC proportionate liability. Whereas Cal Coast contends that its liability is zero. HLC contends that the emails merely demonstrate it acted as an intermediary coordinating transportation related logistics between the various parties. HLC did not physically package the cargo, load the cargo, secure the cargo, transport the cargo or exercise control over the manner in which Cal Coast performed its packaging services. Mario Loughry’s (CEO of Cal Coast) declaration confirms Cal Coast’s role was to shrink wrap the Subject Property. While Cal Coast disputes HLC’s liability, it has offered no evidence establishing that the settlement is unreasonable in relation to HLC’s liability. Cal Coast does not dispute Harrison’s duty to indemnify HLC. Nor does Cal-Coast offer any evidence establishing what HLC’s proportionate share of liability should be. 2. Allocation of Settlement Proceeds Plaintiff is the only plaintiff in this action. 3. Settlor Should Pay Less in Settlement Than if Liability Imposed Following a Trial Although HLC denies any liability for Plaintiff’s damages in this action, it is understood by Plaintiff and HLC that this Settlement Agreement is made at this stage of the litigation to buy HLC’s peace, and said parties recognize that such settlement may be less than a possible trial result.
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		4. Financial Condition and Insurance Policy Limits HLC is in stable financial condition, and its insurance carrier has insurance in an amount apparently sufficient to satisfy the probable amount of a judgment on Plaintiff's claims. 5. No Evidence of Fraud or Collusion HLC's settlement with Plaintiff is the result of an arms-length discussion of the risks of protracted litigation, including an assessment of liability. Cal Coast does not allege any evidence of fraud or collusion. In sum, the court finds that HLC has presented substantial evidence of its potential liability and that the settlement represents a fair proportion of its liability. For these reasons, the motion for determination of a good faith settlement is GRANTED. Clerk to give notice.
9	Pate vs. Lane 2021-01231702	Motion for Summary Judgment and/or Adjudication No tentative. Before ruling on the motion, the court makes the following disclosure: DISCLOSURE The parties are advised that California Code of Judicial Ethics, Canon 3E(2)(a) requires that in all trial court proceedings, a judge shall disclose on the record information that is reasonably relevant to the question of disqualification under Code of Civil Procedure, section 170.1, even if the judge believes there is no actual basis for disqualification. Although Judge Lo firmly believes he can be impartial in all matters before the court, the Court discloses the following: Judge Lo's son is a neurosurgical resident-physician at UCI Medical Center.
10	Power vs. Deerfield Apartments, LLC 2025-01473139	Motion to Compel Arbitration Tentative ruling was issued on 5/7/26. Case Management Conference is VACATED. This action is STAYED pending completion of arbitration. (Code Civ. Proc., § 1281.4.)